



File No: EXP202204987

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 26, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

<<

File No: EXP202204987

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 4, 2022, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant) against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for a possible breach of the provisions of personal data protection regulations.

The reasons for the complaint are as follows:

“Mr. C.C.C., in charge of the BAR on behalf of Mr. B.B.B., in order to harass me at work (there is a lawsuit for workplace harassment), published my medical leave on his WhatsApp status, as I am pregnant, so that all colleagues could see my medical leave, facts that the company supports and did nothing about. Not only could my coworkers see it, but also everyone that Mr. C.C.C. had as a contact. My medical situation is sensitive and no one should know about it.”

Along with the complaint, a screenshot of a WhatsApp conversation with the bar manager, saved as “C.C.C.”, is provided. The image shows that the complainant sends a photograph of what would be the medical leave notice, dated October 7, 2019, where her name and surname appear; and, subsequently, the following conversation:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/16

“C.C.C.. Why does my leave notice appear in the status?

Because it has to appear. I'll call you later.

Okay.”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on May 5, 2022, the aforementioned complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 5, 2022, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this transfer letter.

THIRD: On July 4, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) On September 1, 2022, this Agency received the response prepared by the respondent to the information request dated August 10, 2022:

- It provides a copy of a warning letter, dated October 27, 2021, addressed by the company to the worker C.C.C., informing him that the company has been made aware of the incident that occurred on ***DATE.1 consisting of the publication in the WhatsApp status of the worker of the complainant's leave notice and, consequently, it is communicated that the employer suspends him from work and salary for a period of ten days.
- The warning letter includes instructions given to the worker not to collect any documentation from the other colleagues in the company. Furthermore, they state that they have informed all workers that any communication or notification arising from the employment relationship should be delivered or sent directly to the owner of the establishment. In this regard, the respondent indicates that this decision was made after the incident, around November and December 2021.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/16

2) On March 17, 2023, the Inspection Services requested from the claimant, via electronic notification, information and documentation regarding the means and date on which the sick leave notice was communicated to the company, with no response obtained by the date of the preliminary investigation report.

3) On March 22, 2023, this Agency received the response prepared by the respondent to the information request dated March 17, 2023:

- The representative of the entity states that the sick leave notice was received by the supervisor through the WhatsApp application, with the claimant being the one who sent a photo of said notice via the aforementioned application. The worker has been requested to provide screenshots of the conversation with the claimant, but due to a malfunction in the device, they could not be located.
- The representative of the entity states that the sanctioned worker is the head of personnel, who performs management and administrative functions regarding the other workers, that is, he is the person responsible, along with the owner, for directing the staff and collecting any documentation related to the workers: sick leave notices, medical documentation, vacation organization, time registration, etc.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

- 1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
- 2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage,

adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;

7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law;

12) 'personal data breach': a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed;

15) 'data concerning health': personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about his or her health status;"

In the present case, the respondent, as the owner of the bar, was responsible for ensuring the confidentiality of the personal data contained in the claimant's medical sick leave notice. The respondent processes personal data in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Furthermore, in accordance with Article 4.12 of the GDPR, it is established that a personal data breach has occurred, categorized as a confidentiality breach, due to unauthorized access to the personal data of the claimant, as a result of the publication of their medical notice in the WhatsApp status of the supervisor of the bar where they work, which has constituted a violation of the principle of confidentiality of the personal data of the claimant.

Among the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of the aforementioned provision. Meanwhile, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which govern the security of processing, the notification of a personal data breach to the supervisory authority, as well as the communication to the data subject, respectively.

III

Integrity and confidentiality
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/16

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, it is noted that the personal data of the claimant relating to their name, surname, and health status (pregnancy) have been improperly exposed to third parties, as they appear in the medical leave report of the affected party published in the WhatsApp status of the manager of the bar where they work. The respondent party, owner of the bar, in their responses to the requests made by this Agency acknowledges the reported facts. Evidence of this is the warning letter, dated 27/10/2021, sent to the bar manager agreeing to the suspension of employment and salary from 28/10/2021 to 08/11/2021; as a consequence of the publication "without the consent of this company in their WhatsApp status for a brief moment of the leave report of one of the workers of the entity, specifically, Ms. A.A.A.". Consequently, the confidentiality of the personal data of the claimant is lost from the moment it is exposed to unauthorized third parties.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the respondent party, for violation of Article 5.1.f) of the GDPR.

IV

Classification and qualification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/16

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year limitation period: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

V

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR -Article 58.2 i)-, or the power to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe -Article 58.2 d)-.

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, taking into account the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment they have suffered;

b) the intentionality or negligence in the infringement;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/16

c) any measures taken by the data controller or processor to mitigate the damages suffered by the

data subjects;

- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;
 - e) any prior infringements committed by the data controller or processor;
 - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

As aggravating circumstances:

- The categories of personal data affected by the infringement, as sensitive data such as the health status of the complainant have been exposed (Article 83.2.g) of the GDPR).

The balance of the circumstances considered allows for an initial assessment of a fine of €2,500.00 (two thousand five hundred euros) for the infringement of Article 5.1.f) of the GDPR.

VI

Security of processing

Article 32 of the GDPR, “Security of processing,” establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller and processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/16

3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as evidence to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union law or the law of the Member States.

In this case, at the time of the breach, the defendant, as the owner of the bar, did not have adequate technical and organizational measures in place based on the estimated potential risks, as well as information and training directed at its employee to ensure proper processing of the personal data to which they had access due to their assigned functions. Furthermore, by collecting the medical leave report containing personal data related to the health of the claimant, and consequently classified within the "special categories of personal data," the defendant should have taken extra measures to prevent the actions of its employee.

Although it is true that the defendant stated in its response to the first request that, following the incident, it implemented the obligation for all employees to directly report any communication or notification arising from the employment relationship to it; it is noted that it is not sufficient for the defendant, as the data controller, to implement security measures, but it must also ensure their compliance.

For all these reasons, in accordance with the evidence available at this stage of the initiation of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to the defendant for violation of Article 32 of the GDPR.

VII

Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 2% of the total global annual turnover of the previous financial year, opting for the higher amount: a) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)"

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

10/16

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered serious and shall prescribe after two years, particularly the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679." (...)

VIII

Proposal for sanction for the infringement of Article 32 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In this case, taking into account the facts presented and without prejudice to the outcome of the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraphs 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/16

such as the number of affected parties and the level of damages they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the responsible party or data processor to mitigate the damages suffered by the affected parties;

d) the degree of responsibility of the responsible party or data processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the responsible party or data processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the responsible party or data processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or data processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement."

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall

be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
 - b) The connection of the infringer's activity with the processing of personal data.
 - c) The benefits obtained as a result of the commission of the infringement.
 - d) The possibility that the conduct of the affected party could have included the commission of the infringement.
 - e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
 - f) The impact on the rights of minors.
 - g) Having a data protection officer when not mandatory.
 - h) The voluntary submission by the responsible party or data processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”
- The balance of the circumstances considered allows for an initial assessment of a fine of €500.00 (five hundred euros) for the infringement of Article 32 of the GDPR.

IX

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the responsible party or data processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringements of Articles 5.1.f) and 32 of the GDPR, classified, respectively, in Articles 83.5.a) and 83.4.a) of the GDPR.

SECOND: TO APPOINT D.D.D. as instructor and E.E.E. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/16

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in article 64.2 b) of the LPACAP, the sanction that may correspond would be:

- For the alleged infringement of article 5.1.f) of the GDPR, classified in article 83.5.a) of said regulation, an administrative fine of 2,500.00€ (two thousand five hundred euros)
- For the alleged infringement of article 32 of the GDPR, classified in article 83.4.a) of said regulation, an administrative fine of 500.00€ (five hundred euros).

FIFTH: TO NOTIFY this agreement to B.B.B., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 2,400.00€ (two thousand four hundred euros), resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 2,400.00€ (two thousand four hundred euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 1,800.00€ (one thousand eight hundred euros).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/16

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (2,400.00€ or 1,800.00€), they must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

They must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-290523

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

SECOND: On October 10, 2023, the respondent has proceeded to pay the sanction in the amount of 1,800 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/16

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202204987, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

16/16